Insertion of new section 110AA.

94. After section 110A of the Customs Act, the following section shall be inserted, namely:—

"110AA *Action subsequent to inquiry, investigation or audit or any other specified purpose*.— Where in pursuance of any proceeding, in accordance with Chapter XIIA or this Chapter, if an officer of customs has reasons to believe that—

(*a*) any duty has been short-levied, not levied, short-paid or not paid in a case where assessment has already been made;
(*b*) any duty has been erroneously refunded;
(*c*) any drawback has been erroneously allowed; or
(*d*) any interest has been short-levied, not levied, short-paid or not paid, or erroneously refunded,

then such officer of customs shall, after causing inquiry, investigation, or as the case may be, audit, transfer the relevant documents, along with a report in writing—

(*i*) to the proper officer having jurisdiction, as assigned under section 5 in respect of assessment of such duty, or to the officer who allowed such refund or drawback; or
(*ii*) in case of multiple jurisdictions, to an officer of customs to whom such matter is assigned by the Board, in exercise of the powers conferred under section 5,

and thereupon, power exercisable under sections 28, 28AAA or Chapter X, shall be exercised by such proper officer or by an officer to whom the proper officer is subordinate in accordance with sub-section (2) of section 5.".